

LW6144E: WORLD TRADE LAW

Effective Term

Semester B 2024/25

Part I Course Overview

Course Title

World Trade Law

Subject Code

LW - Law

Course Number

6144E

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

One Semester

Credit Units

3

Level

P5, P6 - Postgraduate Degree

R8 - Research Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Nil

Precursors

Nil

Equivalent Courses

LW5544

Exclusive Courses

LW6544C, LW6544E and LW5620

Part II Course Details

Abstract

This course aims to

- provide students with a critical understanding of the law and policy of modern international trade agreements, with an emphasis on the legal regime of the World Trade Organization (WTO), the successor to the General Agreement on Tariffs and Trade (GATT).
- expose students to the complex intersections between the regulation of international trade and domestic regulatory authorities, and the interface between law, politics, and public policy that emerges in international trade negotiation and dispute settlement.
- encourage students to identify and search for an appropriate understanding of the current issues in the rules-based multilateral trading system.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	Identify, describe and synthesize the principles relating to the multilateral trading system as administered by the World Trade Organisation.	50	x	x	x
2	Apply the rules of world trade law to complex fact patterns.	30	x	x	x
3	Develop the skills to analyse, evaluate, and reflect critically on current legal and economic problems of the international trading system.	20	x	x	x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs		Brief Description	CILO No.	Hours/week (if applicable)
1	Lectures	The course leader will present the substantive law on the topics listed below in the course syllabus.	1, 2, 3	2 hours/week or a total of 26 hours of block teaching
2	Interactive class discussions	Students will learn how to apply the law to specific cases and develop problem-solving skills. Students will also be engaged to participate in debates to develop a critical view of the strengths and deficiencies of international trade law.	1, 2, 3	1 hour/week or a total of 13 hours of block teaching

3	Group assignments	Students will be divided into groups and write an essay on a specified topic relating to international trade law.	1, 2, 3	
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Assessment Tasks / Activities (ATs)

ATs		CILO No.	Weighting (%)	Remarks (e.g. Parameter for GenAI use)
1	Classroom interaction (i.e., Q&A)	1, 2, 3	15	The use of Generative AI tools is not allowed.
2	Group assignment (written report)	1, 2, 3	15	The use of Generative AI tools is not allowed.

Continuous Assessment (%)

30

Examination (%)

70

Examination Duration (Hours)

2

Additional Information for ATs

Exam: The use of Generative AI tools is not allowed.

Applicable to students admitted from Semester A 2022/23 to Summer Term 2024

Students must obtain a minimum mark of 50% in examination and an overall mark of 50% in order to pass the course. When University facilities and resources are available, students are required to take a computer-based examination in computer labs. During the examination, students are blocked from access to the Internet.

Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter

Students must obtain a minimum mark of 40% in examination and an overall mark of 40% in order to pass the course. When University facilities and resources are available, students are required to take a computer-based examination in computer labs. During the examination, students are blocked from access to the Internet.

Assessment Rubrics (AR)**Assessment Task**

Classroom interaction (i.e. Q&A) Group assignment (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

Demonstration of ability to identify issues;

Application of knowledge to specific problems and discussion questions.

Excellent

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyse and synthesize; superior grasp of subject matter; evidence of extensive knowledge base.

Good

(B+, B, B-) Evidence of grasp of subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues; evidence of familiarity with literature.

Fair

(C+, C, C-) Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material.

Marginal

(D) Sufficient familiarity with the subject matter to enable the student to progress without repeating the course.

Failure

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited, or irrelevant use of literature.

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Part III Other Information

Keyword Syllabus

World Trade Organization, Dispute settlement, Non-discrimination, Trade protectionism, Trade remedies, Technical barriers to trade, Tariffs, Free trade agreements

Detailed Syllabus

The following topics are studied in detail:

- a. The history and institutions of the multilateral trading system
- b. Dispute settlement system of the WTO
- c. Tariffs and non-tariff measures
- d. Non-discrimination principle
- e. General exceptions
- f. Safeguards
- g. Anti-dumping duties
- h. Subsidies and countervailing duties
 - i. Agreement on technical barriers to trade
 - j. Agreement on the application of sanitary and phytosanitary measures
- k. Free trade agreements
 - l. Trade liberalization in the 21st century

Reading List

Compulsory Readings

Title	
1	Peter Van Den Bossche and Werner Zdouc, <i>The Law and Policy of the World Trade Organization</i> (4th ed, Cambridge University Press, 2017).
2	Andrew T. Guzman and Joost Pauwelyn, <i>International Trade law</i> (Wolters Kluwer, 2009).
3	Simon Lester, Bryan Mercurio and Arwel Davis, <i>World Trade Law: Text, Materials and Commentary</i> (3rd, Hart Publishing, 2018).
4	Mitsuo Matsushita, Thomas Schoenbaum, Petros Mavroidis and Michael Hahn, <i>The World Trade Organization: Law, Practice, and Policy</i> (3rd ed, Oxford University Press, 2015).

Additional Readings

Title	
1	Recommended journals
2	Journal of International Economic Law
3	World Trade Review
4	Journal of World Trade
5	American Journal of International Law
6	Leiden Journal of International Law
7	Journal of World Investment & Trade
8	Legal Issues of Economic Integration
9	The World Economy
10	European Journal of International Law
11	Asian Journal of WTO & International Health Law and Policy
12	World Politics
13	Recommended podcasts
14	Trade Talks
15	Tradecraft
16	AIG Global Trade Series
17	Dollar & Sense
18	The Trade Guys
19	Trade Bites
20	ECIPE Global Economy
21	Recommended websites
22	WTO official website: www.wto.org
23	International Economic Law and Policy Blog: https://worldtradelaw.typepad.com/
24	Brookings Institute (Trade Section): https://www.brookings.edu/topic/global-trade/
25	Peterson Institution for International Economics (Trade Policy): https://www.piie.com/research/trade-investment/trade-policy
26	Centre for Strategic & International Studies (Trade and International Business), https://www.csis.org/topics/economics/trade-and-international-business
27	Global Trade Alert: https://www.globaltradealert.org/reports